

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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KENNY MELENDEZ,

Plaintiff,

- Against -

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and, POLICE
OFFICER STEVEN TORRES Badge # 19874,

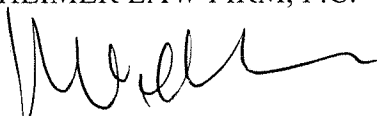
Defendants.

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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve a Notice of Appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
February 16, 2021

WERTHEIMER LAW FIRM, P.C.

By: 
ROBIN M. WERTHEIMER, ESQ.
Attorneys for Plaintiff
225 Broadway, 38th Floor
New York, New York 10007
(212) 964-1860

Defendants Addresses

CITY OF NEW YORK- 1 Centre Street, New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT- 1 Police Plaza, New York, New York 10007

POLICE OFFICER STEVEN TORRES C/O The New York City Police Department- 1 Police Plaza, New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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KENNY MELENDEZ,

Index No.:

Plaintiff,

- Against -

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and POLICE OFFICER
STEVEN TORRES Badge #19874,

VERIFIED COMPLAINT

Defendants.

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Plaintiff, KENNY MELENDEZ, by his attorneys, WERTHEIMER LAW FIRM, P.C., as and for his Verified Complaint against the defendants herein, alleges the following, upon information and belief:

NATURE OF THE ACTION

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, of rights insured by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York as well as assault, battery, unnecessary use of force, failure to properly train and negligence, all in violation of 42 U.S.C. §1983 and related New York State laws as stated herein.
2. Upon information and belief, defendants harassed, assaulted, battered, used excessive and unnecessary force in arresting plaintiff and causing him great physical harm and extreme pain and suffering, in violation of plaintiff's Constitutional and Civil Rights.

NOTICE OF CLAIM

3. On August 1st, 2019, Plaintiff duly filed with the City of New York and the Police Department of the City of New York a Notice of Claim in accordance with the New York General Municipal Law 50-e. On October 28th, 2019, a Section 50-h hearing was conducted. The claims remain unresolved and outstanding.

THE MATERIAL FACTS

4. On Sunday, June 23rd, 2019, the plaintiff, KENNY MELENDEZ was lawfully and properly near, at, in and/or about the premises known as and by street 2590 Bailey Avenue, Bronx County, City and State of New York, when he was caused to be injured, forcibly, violently and unlawfully threatened, assaulted, battered, tased and placed under arrest and imprisoned by the defendant, POLICE OFFICER STEVEN TORRES Badge #19874 while employed by and on behalf of THE CITY OF NEW YORK while Mr. Melendez was lawfully present upon said premises located at 2590 Bailey Avenue, Bronx County, City and State of New York.

THE PARTIES

5. Plaintiff was and still is a resident of Bronx County, City and State of New York.
6. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK was and still is a duly licensed Municipal Corporation authorized to transact business in Bronx County, City and State of New York.
7. At all times hereinafter mentioned, defendant THE NEW YORK POLICE DEPARTMENT was and still is a duly licensed Municipal Corporation authorized to transact business in Bronx County, City and State of New York.
8. Upon information and belief, that all times herein, the defendant, NEW YORK CITY POLICE OFFICER STEVEN TORRES Badge #19874 (52nd Precinct), was and still is an employee of The City of New York Police Department as a Police Officer, and was at all times herein acting within the furtherance and scope of his

employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT expressly and implicitly condoned all of the actions of POLICE OFFICER STEVEN TORRES Badge #19874.

9. Upon information and belief the defendants, THE CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT at all times herein, condoned all the acts of the defendant, POLICE OFFICER STEVEN TORRES Badge #19874, as herein and hereinafter set forth.
10. Upon information and belief, each and all of the acts of the defendants alleged herein were done by defendants, and each of them under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York and under the authority of the Office as Police Officer for New York City and were committed willfully, maliciously, wantonly and recklessly.

AS AND FOR A FIRST CAUSE OF ACTION
USE OF EXCESSIVE FORCE

11. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "10", of the Complaint, as if set forth at length herein.
12. Upon information and belief, on or about Sunday, June 23rd, 2019, in front of premises known as and by street number 2590 Bailey Avenue, in the City and State of New York, County of Bronx, the defendant, NEW YORK CITY POLICE OFFICER STEVEN TORRES Badge #19874, did improperly and unlawfully assault, batter, and tase the plaintiff, KENNY MELENDEZ, while he was handcuffed and did improperly and unlawfully handcuff and abuse plaintiff with the intent, purpose and/or result of harming, humiliating and embarrassing plaintiff in the presence of the public generally, and particularly, the people present at the scene.
13. Defendant officer Steven Torres Badge #19874, who was acting in concert

and with the scope of their authority, used excessive force in the course of the arrest as the tripping and pushing of plaintiff to the ground and thereafter tasing him was objectively unreasonable and in violation of plaintiff's rights under the Fourth Amendment to the constitution not to be subjected to excessive force/unreasonable seizure during his arrest and therefore liable to plaintiff pursuant to 42 U.S.C. §1983.

14. The use of excessive force by the defendants resulted in plaintiff being grievously injured thereby depriving him of his rights under the Fourth and Fourteenth Amendments to the Constitution and by causing him permanent injury.
15. Upon information and belief, by the reason of the aforesaid assault and/or excessive force and/or arrest of the plaintiff, KENNY MELENDEZ, by the defendant, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of enjoyment of life, and was otherwise injured and scarred in the amount which exceeds jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

16. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "15", of the Complaint, as if set forth at length herein.
17. That THE CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendant officer Steven Torres Badge #19874, an individual who was unfit for the performance of police duties on June 23rd, 2019.
18. That THE CITY OF NEW YORK and THE NEW YORK POLICE

DEPARTMENT were negligent, careless and reckless in not sufficiently training their police officers and that all of the aforesaid defendants did not perform a proper investigation before committing the aforesaid conduct, and in negligently hiring and retaining defendant, POLICE OFFICER STEVEN TORRES Badge #19874 and the defendants were otherwise negligent.

19. That as a direct and proximate result of the defendants, THE CITY OF NEW YORK's and THE NEW YORK POLICE DEPARTMENT negligence, including, but not limited to: their failure to properly and adequately train their police officers, and of the negligence of the defendant, POLICE OFFICER STEVEN TORRES Badge #19874, all of the aforesaid tortious conduct was committed upon the plaintiff causing him serious severe physical and emotional injuries.
20. That by reason of the foregoing, plaintiff suffered and continues to suffer irreparable injury and damages in the amount which exceeds the limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
NEGLIGENCE

21. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "20", of the Complaint, as if set forth at length herein.
22. In the acts complained of herein, defendants acted negligently in that they had a duty to act reasonably and responsibly and not to act in a manner that badly injured plaintiff. Defendant office had a duty to act as would a prudent officer, by not taking actions which would unnecessarily physically harm plaintiff and acting within the scope of their authority, and not using excessive force and otherwise violating the Constitutional and Civil Rights of the plaintiff. Defendant officer in his action breached those duties.

AS AND FOR A FOURTH CAUSE OF ACTION**BATTERY**

23. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "22", of the Complaint, as if set forth at length herein.
24. In the acts complained of herein, defendants acted negligently in that they had a duty to act reasonably and responsibly and not to act in a manner that badly injured plaintiff. Defendant office had a duty to act as would prudent officer, by not taking actions which would unnecessarily physically harm plaintiff and acting within the scope of their authority, and not using excessive force and otherwise violating the Constitutional and Civil Rights of the plaintiff. Defendant officer in his action breached those duties.
25. As a consequence of defendant's wrongful actions, intentional, negligent and reckless behavior, and violations of the state and federal laws, plaintiff was seriously injured and suffered and continues to suffer physical pain and impairment and mental emotional distress.
26. That as a direct and proximate result of the defendants, THE CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT, negligence, including, but not limited to: their failure to properly and adequately train their police officers, and of the negligence of the defendant POLICE OFFICER STEVEN TORRES Badge #19874, all of the aforesaid tortuous conduct was committed upon the plaintiff causing him serious severe physical and emotional injuries.
27. By reason of the aforesaid negligence of defendants and their violation of his civil rights, THE CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT and POLICE OFFICER STEVEN TORRES Badge #19874 were negligent, careless and reckless in not sufficiently training their police officers and that all of the aforesaid defendants did not

perform a proper investigation before committing the aforesaid conduct, and in negligently hiring and retaining defendant, POLICE OFFICER STEVEN TORRES Badge #19874 and the defendants were otherwise negligent.

28. That as a direct and proximate result of the defendants, THE CITY OF NEW YORK's and THE NEW YORK POLICE DEPARTMENT negligence, including, but not limited to: their failure to properly and adequately train their police officers, and of the negligence of the defendant, POLICE OFFICER STEVEN TORRES Badge #19874, all of the aforesaid tortuous conduct was committed upon the plaintiff causing him serious severe physical and emotional injuries.
29. That by reason of the aforesaid negligence of defendants and their violation of his civil rights, THE CITY OF NEW YORK's and THE NEW YORK POLICE DEPARTMENT and POLICE OFFICER STEVEN TORRES Badge #19874, the plaintiff KENNY MELENDEZ did suffer shock, mental distress, emotional stress, material loss, emotional damage, humiliation, loss of esteem, loss of liberty, loss of enjoyment of life, loss of time and physical damage and was otherwise injured in a sum that exceeds the jurisdictional limits of all lower courts.
30. Upon information and belief, each of the defendants' separately and in concert engaged in illegal conduct herein mentioned to the injury of the plaintiff and deprived plaintiff, KENNY MELENDEZ, of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States. The defendants, in imprisoning and arresting the plaintiff, KENNY MELENDEZ, deprived the plaintiff of his constitutional rights as secured by the United States Constitution and freedom from illegal seizure, illegal search, freedom from illegal detention, coercion and intimidation, all secured by the Constitution of the United States and 42 U.S.C. § 1983. The defendants acted knowingly and purposely with the specific intention to deprive the plaintiff

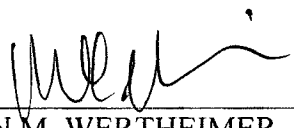
of his aforementioned rights.

31. Plaintiff hereby demands reasonable attorney's fees pursuant to 42 U.S.C. §1983 and other Civil Rights Statutes.

WHEREFORE, plaintiff demands judgment against the defendants jointly and severally, for compensatory and punitive damages in sum to be determined by this Court together with the costs, interest and disbursements of this action, and together with such other and further relief as to this Court may seem just and proper.

Dated: New York, New York
February 16, 2021

WERTHEIMER LAW FIRM, P.C.

By: 
ROBIN M. WERTHEIMER, ESQ.
Attorneys for Plaintiff
KENNY MELENDEZ
Office and P.O. Address
225 Broadway, 38th Floor
New York, NY 10023
(212) 964-1960

VERIFICATION

ROBIN M. WERTHEIMER, an attorney duly admitted to practice law before the Courts of the State of New York, hereby affirms the truth of the following statements under the penalties of perjury:

Affirmant's office is the attorney of record for the plaintiff in the within action.

Affirmant has read the SUMMONS AND VERIFIED COMPLAINT and knows the contents thereof.

The same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, affirmant believes them to be true.

The reason this verification is made by affirmant and not plaintiff is because plaintiff is not within the County at the time this affirmation is made.

The grounds of affirmant's belief as to all matters not stated upon affirmant's own knowledge are as follows: investigation and information received by affirmant in the course of representing petitioner and the office file appertaining to this matter.

Dated: New York, New York
February 16, 2021


ROBIN M. WERTHEIMER